

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 25-03

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EUROMARKET DESIGNS, INC.,  
COMPLAINANT,

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA;  
OCEAN NETWORK EXPRESS PTE. LTD.; EVERGREEN  
LINE JOINT SERVICE AGREEMENT (FMC  
AGREEMENT NO. 011982); EVERGREEN MARINE  
CORP. (TAIWAN) LTD.; EVERGREEN MARINE (UK)  
LIMITED; ITALIA MARITTIMA SPA; EVERGREEN  
MARINE (HONG KONG) LTD.; EVERGREEN MARINE  
(SINGAPORE) PTE. LTD.; HMM COMPANY LIMITED;  
MAERSK A/S; CMA CGM S.A.; APEX MARITIME CO.,  
INC.; CHINA UNITED TRANSPORT, INC.; COSCO  
SHIPPING LINES CO., LTD.; AND WAN HAI LINES  
LTD.,  
RESPONDENTS.

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**JOINT MOTION OF COMPLAINANT AND RESPONDENT APEX MARITIME CO., INC.**  
**FOR APPROVAL AND**  
**CONFIDENTIAL TREATMENT OF SETTLEMENT AGREEMENT**

Euromarket Designs, Inc. (“EDI” or “Complainant”) and APEX Maritime Co., Inc. (“APEX” or “Respondent”) (referred to jointly as the “Parties”) submit this joint motion in support of the confidential Settlement Agreement, Release, and Indemnity filed under seal concurrently herewith. The Parties believe that the confidential Settlement Agreement, Release, and Indemnity meets the criteria set by the Federal Maritime Commission (“FMC” or “Commission”) for the approval of settlement agreements and therefore should be approved and Respondent dismissed from this proceeding.

## **I. INTRODUCTION**

This proceeding was commenced when EDI filed a verified complaint on December 31, 2024 alleging that APEX, among other Respondents named above, had violated 46 U.S.C. 41104(c) of the Shipping Act of 1984, as amended and seeking an award of reparations. APEX timely filed a verified Answer on February 3, 2025 and denied the claims presented.

The Parties have engaged in settlement discussions and have reached an agreement, which is embodied in the confidential Settlement Agreement, Release, and Indemnity (the “Agreement”) filed in connection with this Joint Motion for Approval and Confidential Treatment.

## **II. THE AGREEMENT SHOULD BE APPROVED**

“The Commission has a strong and consistent policy of ‘encourag[ing] settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.’” *Aeneas Exporting LLC v. Carlo Shipping Intl, Inc.*, Docket No. 20-11, 2020 WL 5942148, at \*2 (FMC Sept. 29, 2020) (quoting *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002)). “[I]f it is the considered judgment of the parties that whatever benefits might result from vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement.” *Delhi Petroleum Pty. Ltd. v. US. Atl. & Gulf/Australia - New Zealand Conf. and Columbus Line, Inc.*, Docket Nos. 88-2, 88-4, 1988 WL 340657 at \*7, 24 S.R.R. 1129, 1134 (Aug. 12, 1988)). “Reaching a settlement allows the parties to settle their differences, without an admission of a violation of law by

the respondent, when both the complainant and respondent have decided that it would be much cheaper to settle on such terms than to seek to prevail after expensive litigation.” *Mac Indus., Inc. d/b/a Mac Container Line v. COSCO Shipping Lines Co., Ltd.*, Docket No. 2009, 2020 WL 4464298, at \*2 (FMC July 29, 2020) (quoting *APM Terminals North America, Inc. v. Port Authority of New York and New Jersey*, 31 S.R.R. 623, 626 (FMC 2009)).

The Commission’s policies, its Rules of Practice, and the Administrative Procedures Act all encourage settlements. As the ALJ recognized in *Old Ben Coal Co. v. Sea-Land Services, Inc.*, 21 FMC 505, 512, 18 S.R.R. 1085, 1091 (ALJ 1978), quoting 15A Am Jur. 2d. 777-778:

The desire to uphold compromises and settlements is based upon various advantages which they have over litigation. The resolution of controversies by means of compromise and settlement is generally faster and less expensive than litigation; it results in a saving of time for the Parties, the lawyers, and the courts, and it is thus advantageous to judicial administration, and, in turn to government as a whole. Moreover, the use of compromise and settlement is conducive to amicable and peaceful relations between the parties to a controversy. Evaluating this motion to approve the confidential Settlement Agreement entails examining whether it “reflects careful consideration by the parties of a variety of factors, including the relative strengths of their positions weighed against the risks and costs of continued litigation.” *APM Terminals N Am., Inc.*, 31 S.R.R. at 636 (quoting *Delhi Petroleum Pty. Ltd., supra*, 1988 WL 340657 at \*7, 24 S.R.R. 1129, 1134 (Aug. 12, 1988)).

The Commission reviews settlement agreements to ensure that they do not contravene any law or public policy, and are free of fraud, duress, undue influence, or mistake, or other defects which might make them not subject to approval. The primary factor to be considered, however, is the FMC's “strong and consistent policy of encouraging settlements . . . .” *APM Terminals, supra*, 31 S.R.R. at 625 (quoting *Inlet Fish Producers, Inc.*, 29 S.R.R. at 978). In this action, the Parties, both sophisticated corporate entities, with

the advice and assistance of their respective counsel, arrived at the Agreement through arm's length negotiations and support this motion and the relief that it seeks. The Agreement does not contravene any law or public policy and is neither unjust nor discriminatory. It does not contemplate any adverse effects on any third parties or the shipping public. Instead, the Agreement is a fair and reasonable resolution of the disputes between the Parties and reflects their desire to resolve their issues without the need for costly and uncertain litigation. For these reasons, the Parties respectfully request that the Agreement be approved.

### **III. REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL**

The FMC routinely affords confidential treatment to settlement agreements under 46 C.F.R. § 502.5, recognizing that they “often contain sensitive commercial information that should be protected from public disclosure.” *D.F. Young, Inc. v. NYK Line (North America) Inc.*, Docket No. 16-02, 2018 WL 2411779, at \*2, 1 F.M.C.2d 135, 136-37 (FMC May 22, 2018). “If parties wish to keep the terms of their settlement agreements confidential, the Commission, as well as the courts, have honored such requests.” *Marine Transp. Logistics, Inc. v. CMA-CGM (America) LLC*, Docket No. 18-07, 2020 WL 948582, at \*3 (FMC Feb. 18, 2020) (quoting *Al Kogan v. World Express Shipping, Transp. and Forwarding Servs., Inc.*, Docket No. 00-04, 29 S.R.R. 68, 70 n.7 (ALJ Dec. 14, 2000)). Under the terms of the Agreement, the Parties must keep the terms of the Agreement confidential. This confidentiality requirement is a material term of the Agreement. This Agreement is the result of confidential commercial negotiations between the parties, and the parties therefore respectfully request leave to file the Agreement under seal for review and approval, and that the Agreement thereafter continue to be afforded confidential

treatment by the FMC. Additionally, because the entire Agreement is confidential, the Parties have not filed a “public version.” Commission precedent provides that settling parties need not file a public version of a settlement in such circumstances. *Global Link Logistics, Inc. v. Hapag-Lloyd AG*, No. 13-07, 2015 WL 1928868, at \*6 (FMC Apr. 14, 2015).

Where, as here, the Parties “want to maintain confidentiality of the Confidential Settlement Agreement as it contains terms setting out the settlement amount, as well as terms governing the release of all claims related to the controversy involved” and there is no “public interest in disclosure of the settlement amount or the terms of the release of the involved claims, that outweighs the [p]arties’ interest in maintaining the confidentiality of these terms,” the agreement should be held confidentially. *Id.* at \*7.

#### **IV. CONCLUSION**

The Agreement comprehensively addresses the issues relating to the above-referenced proceeding and meets the Commission’s well-established criteria for approval of agreements settling administrative litigation. Accordingly, for the reasons set forth herein, the Parties respectfully request approval of their Settlement Agreement.

The Parties also respectfully request that the Presiding Officer designate the Settlement Agreement as confidential and keep it under seal.

Upon approval of the Agreement, the Parties respectfully request that that Respondent APEX be dismissed from this proceeding, and that all claims against APEX be dismissed with prejudice.

Dated: May 18, 2026

Respectfully Submitted,

/s/ 

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ATTACHMENT TO JOINT MOTION FOR APPROVAL OF  
CONFIDENTIAL SETTLEMENT AGREEMENT

(PUBLIC VERSION)

CONFIDENTIAL VERSION PROVIDED TO PRESIDING OFFICER AND COMMISSION  
SECRETARY PURSUANT TO 46 C.F.R. §§ 502.5(a)(2)(i) AND 502.2